

RESIDENTIAL LEASE AGREEMENT

State of California

LANDLORD: Margaret H. Thornton
ADDRESS: 4821 Elmwood Drive, San Jose, CA 95128
TENANT(S): Jordan A. Reeves
PROPERTY: Unit 4B, 220 Crestview Lane, Mountain View, CA 94040
LEASE TERM: 12 months, commencing August 1, 2025, ending July 31, 2026
MONTHLY RENT: \$3,200.00 (Three Thousand Two Hundred Dollars)
SECURITY DEPOSIT: \$6,400.00 (Two months' rent)

1. RENT PAYMENT

Tenant agrees to pay the monthly rent of \$3,200.00 on or before the FIRST (1st) day of each calendar month. Rent shall be paid by bank transfer or certified check to Landlord at the address listed above. A late fee of \$150.00 will be assessed for any rent received after the 5th day of the month. Landlord reserves the right to increase rent upon 60 days written notice in accordance with California Civil Code Section 1945.5. Rent increases shall not exceed 5% plus local CPI or 10% of the lowest rent charged in the prior 12 months, whichever is lower, per California AB 1482.

2. SECURITY DEPOSIT

Upon execution of this Agreement, Tenant shall deposit the sum of \$6,400.00 as a security deposit. This deposit is held to secure Tenant's performance of obligations under this Agreement. Landlord may withhold from the deposit amounts sufficient to remedy defaults in rent payment, repair damages beyond normal wear and tear, and clean the premises if left unclean. Landlord shall return the deposit within 21 days of Tenant vacating the property, along with an itemized statement of any deductions. Failure to return the deposit within this period may entitle Tenant to statutory damages of twice the withheld amount under California Civil Code Section 1950.5.

3. OCCUPANCY AND USE

The premises shall be occupied solely as a private residential dwelling by the named Tenant and no other persons without prior written consent of Landlord. Tenant shall not use or permit the premises to be used for any unlawful purpose. Tenant shall comply with all applicable laws, ordinances, and regulations. Subletting or assignment of this lease is strictly prohibited without prior written consent of Landlord. Violation of this clause constitutes material breach and grounds for immediate termination.

4. MAINTENANCE AND REPAIRS

Tenant shall maintain the premises in a clean and sanitary condition and shall not permit any waste or nuisance. Tenant is responsible for minor repairs under \$150.00. Tenant must promptly notify Landlord in writing of any defects or conditions requiring repair. Landlord shall complete repairs within a reasonable time, not to exceed 30 days for non-emergency items. Tenant shall be liable for damages caused by Tenant's negligence or misuse. Unauthorized alterations, modifications, or improvements are strictly prohibited and Tenant may be required to restore the premises at Tenant's expense upon vacating.

5. ENTRY BY LANDLORD

Landlord or Landlord's agents may enter the premises with 24-hour advance written notice for inspection, repairs, or to show the unit to prospective tenants or buyers. In the event of emergency, Landlord may enter without prior notice. Repeated or unreasonable entries without notice may constitute constructive eviction under California law. Tenant shall not change or add locks without prior written consent. Landlord retains the right to a duplicate key at all times.

6. PETS

No pets of any kind shall be permitted on the premises without prior written consent of Landlord. Unauthorized pets constitute a material breach of this Agreement. If Landlord consents to a pet, Tenant shall pay an additional non-refundable pet fee of \$500.00 and an additional monthly pet rent of \$75.00. Tenant shall be fully liable for any damage caused by authorized or unauthorized pets.

7. UTILITIES AND SERVICES

Tenant is responsible for establishing and paying all utility accounts including electricity, gas, internet, and cable. Water, trash, and sewer services are included in the monthly rent. Failure to maintain required utilities shall constitute a material breach of this Agreement. Landlord makes no warranty regarding the quality or continuity of utility services provided by third-party providers.

8. TERMINATION AND DEFAULT

This lease shall terminate on July 31, 2026. Tenant must provide 30 days written notice prior to vacating. Early termination by Tenant without cause shall result in forfeiture of the security deposit and liability for rent through the end of the lease term or until the unit is re-let, whichever occurs first. Landlord may terminate this Agreement upon 3-day written notice for non-payment of rent, and upon 3-day notice to cure or quit for material breach of any other provision. Habitual late payment (3 or more occurrences) constitutes grounds for non-renewal.

9. INDEMNIFICATION AND LIABILITY

Tenant agrees to indemnify, defend, and hold harmless Landlord from any claims, damages, losses, or expenses arising from Tenant's use of the premises or Tenant's breach of this Agreement. Landlord shall not be liable for loss of or damage to Tenant's personal property except where caused by Landlord's gross negligence or willful misconduct. Tenant is strongly

advised to obtain renter's insurance. Landlord's liability for any breach of the implied warranty of habitability shall be limited to rent abatement for the period of uninhabitability.

10. GOVERNING LAW AND DISPUTES

This Agreement shall be governed by the laws of the State of California. Any disputes arising under this Agreement shall be resolved in the courts of Santa Clara County. In any action to enforce this Agreement, the prevailing party shall be entitled to reasonable attorney's fees and costs. This Agreement constitutes the entire understanding between the parties and supersedes all prior negotiations, representations, or agreements. Any modification must be in writing and signed by both parties.

SIGNATURES

Landlord Signature: _____ Date: _____

Tenant Signature: _____ Date: _____